

# 19STCP01172 19STCP01172

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-20

Source URL: [https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=SS%20%2C26%2C07%2F20%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F20%2F2026)

Source SHA-256: 6065e5e21f6fd859c45c0ef597c10e962774ff0a108310e11762250073dad92e

Case Number: 19STCP01172 Hearing Date: July 20, 2026 Dept: 26

TENTATIVE

RULING:

Judgment Debtor Patricia

Stephenson's Motion to Vacate June 9, 2026 Assignment Order, alternatively, for Reconsideration; and Request for Stay of Enforcement, is denied.

Analysis:

On April 10, 2019, the Court entered judgment in favor of Marius Denisiu ("Judgment Creditor") and against Executive Network Enterprises, Inc. dba Executive Limousine ("Judgment Debtor ENE") pursuant to an Order, Decision or Award of the Labor Commissioner.

On September 4,

2024, Judgment

Creditor filed a Motion to Amend Judgment. Following full briefing and oral argument by the parties, the court took the matter under submission.

(Minute Order, 10/24/24.) On October 31, 2024, the Court granted the Motion to Amend Judgment by adding Patricia Stephenson ("Judgment Debtor Stephenson") and Stori Bolton as additional judgment debtors. (Minute Order, 10/31/24.) On March 4, 2025, the Court granted Judgment Debtors' Motion for Reconsideration as to Stori Bolton, but denied it as to Judgment Debtor Stephenson. (Minute Order, 03/04/25.) The amended judgment was entered on April 14, 2025.

Judgment Debtor

Stephenson filed a Motion to Vacate Judgment on October 1, 2025 and a Motion to Vacate and Dismiss Amended Judgment on October 7, 2025. On October 28, 2025,

the Court denied both Motions to Vacate. (Minute Order, 10/28/25.) Judgment Debtor Stephenson filed a Motion for Reconsideration on November 24, 2025, which the Court denied on January 22, 2026. (Minute Order, 01/22/26.) On January 8, 2026, the Court granted the Order to Show Cause Re: Why The Court Should Not Enter an Order For Sale Regarding 4764 La Villa Marina #H, Marina Del Rey, CA 90292 to Satisfy the Judgment in this Case. (Minute Order, 01/08/26.) The Order for Sale was signed and entered on January 27, 2026.

The Court denied

Judgment Debtor Stephenson's Ex Parte Application for 30 Day Continuance and Temporary Stay of Enforcement of Order for Sale on March 5, 2026. (Minute Order, 03/05/26.) Judgment Debtor Stephenson then filed a Substitution of Attorney on March 27, 2026, substituting out Attorney Brad Axelrod and indicating she is self-represented. On April 15, 2026, the Court denied Judgment Debtor Stephenson's Ex Parte Application to stay Sheriff's Sale. (Minute Order, 04/15/26.) On April 16, 2026, the Appellate Division issued an opinion dismissing Judgment Debtor ENE's appeal of the judgment. (Opinion, 04/16/26.)

Judgment

Creditor filed a Memorandum of Costs After Judgment on June 4, 2026. On June 9, 2026, the Court granted Judgment Creditor's Motion for Assignment Order. Judgment Debtor Stephenson filed the instant Motion to Vacate June 9, 2026 Assignment Order, alternatively, for Reconsideration; and Request for Stay of Enforcement on June 22, 2026. Judgment Creditor filed an opposition on July 6, 2026 and Judgment Debtor Stephenson replied on July 10, 2026.

Discussion

Judgment Debtor Stephenson moves first for an order vacating the Court's ruling dated June 9, 2026, granting Judgment Creditor an assignment order with respect to shares of stock in Wells Fargo & Company. The Motion is brought pursuant to Code of Civil Procedure section 473, subdivision (b). Relief under Code of Civil Procedure section 473, subdivision (b) must be sought within a reasonable time, no more than six months after entry of the order from which relief is sought, and must be accompanied by an affidavit of fault attesting to the moving party's mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) The Motion also cites Code of

Civil Procedure section 708.510, which requires service of a motion for assignment order personally or by mail.

The Motion was timely filed less than one month after the order it seeks to vacate and is supported by Judgment Debtor Stephenson's declaration. Judgment Debtor Stephenson declares that she did not receive the papers in support of the Motion for Assignment Order or the notice of hearing, and did not have actual notice of the hearing, thereby depriving her of an opportunity to oppose the matter. (Motion, Stephenson Decl., ¶¶3-5.) According to Judgment Debtor Stephenson, the address where the papers and notice were served—208 N. Maple Drive, Beverly Hills, California—is a probate property and not a proper address for service of judgment enforcement motions. (Id. at ¶¶6-7 and Exh. B.) Judgment Debtor Stephenson's personal residence is 4764 La Villa Marina, Marina del Rey, California, but she sometimes used the probate address in this action out of habit from the probate proceedings. (Id. at ¶¶8-10.) Judgment Creditor's counsel was aware that the 4764 La Villa Marina address was Judgment Debtor Stephenson's residence. (Id. at ¶12.)

According to the Motion itself, the papers were served to the address listed by Judgment Debtor Stephenson in this action. This is also demonstrated by the fact that the Motion for Assignment Order was served on March 2, 2026, and two days later, Judgment Debtor Stephenson filed a Notice of Change of Address changing her address from the Maple Drive address to 4764 La Villa Marina, Marina del Rey, California. (Notice of Change of Address, filed 03/04/26.) Judgment Debtor Stephenson's own prior use of a different address does not constitute the type of mistake, inadvertence, surprise, or excusable neglect that warrants relief. Furthermore, Judgment Creditor's opposition demonstrates that mail directed to Judgment Debtor Stephenson at the 4764 La Villa Marina address was being forwarded to the 208 N. Maple Drive address during the relevant time period. (Opp., Collins Decl., Exh. B.)

Judgment Debtor Stephenson does not dispute this fact, and instead argues in reply that she never actually received the Motion for Assignment Order. The opposition, however, also demonstrates that Judgment Creditor's counsel sent Judgment Debtor Stephenson the Motion for Assignment by email and by e-service. (Opp., Collins Decl., Exhs. C-3 and C-4.) In reply, Judgment Debtor Stephenson argues that she could not open the email documents, but the parties' email communications show that Judgment Creditor's attorney sent the Motion for Assignment again by email and by e-service and informed Judgment Debtor Stephenson of this. (Id. at Exhs. C-3, C-4, D-1, and

D-2.) The reply also does not dispute e-service of the papers but argues that this did not comply with the requirements for service under Code of Civil Procedure section 708.510. The Court finds this irrelevant given that Judgment Creditor already demonstrated compliance with section 708.510 by serving the Motion for Assignment Order by mail. E-service is relevant to show that Judgment Debtor Stephenson was on notice of the Motion for Assignment Order. Therefore, neither lack of proper service, nor lack of actual notice of the Motion for Assignment Order is grounds to grant Judgment Debtor Stephenson relief under Code of Civil Procedure section 473, subdivision (b). Nor does the Motion cite any authority for Judgment Debtor Stephenson's alternative requests for relief: reconsidering the assignment order or staying its execution. The references to Code of Civil Procedure section 700.200, and Probate Code sections 9650 and 11750 do not provide a basis for the Court to reconsider or stay a prior order. (Motion, p. 5:13-27.)

Finally, to the extent Judgment Debtor Stephenson attempts to expand the legal basis for the Motion by citing Code of Civil Procedure section 708.560 in the reply, this is not permissible as it deprives the opposing party of an opportunity to address that argument. (*Neighbours v. Buzz Oates Enterprises* (1990) 217 Cal.App.3d 325, 335 ["Obvious considerations of fairness in argument demand that the appellant present all of his points in the opening brief. To withhold a point until the closing brief would deprive the respondent of his opportunity to answer it or require the effort and delay of an additional brief by permission. Hence the rule is that points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before." [Citations.]] (9 Witkin, *Cal.Procedure* (3d ed. 1985) § 496, p. 484.))

## Conclusion

Based on the foregoing, Judgment Debtor Patricia Stephenson's Motion to Vacate June 9, 2026 Assignment Order, alternatively, for Reconsideration; and Request for Stay of Enforcement is denied.

Judicial Assistant to give notice.